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GENERAL MOTORS LLC

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
06/07/2024
Clerk of the Court
BY: JAMES FORONDA
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

GREGORIO GARCIA, an individual, Plaintiff, vs. GENERAL MOTORS LLC, a Delaware Limited Liability Company, and DOES 1 through 10, inclusive, Defendants.	Case No.: CGC-24-614473 **GENERAL MOTORS LLC'S ANSWER TO PLAINTIFF'S UNVERIFIED COMPLAINT**

Defendant General Motors LLC ("GM") answers Plaintiff's Unverified Complaint as follows:

I.

GM answers the Unverified Complaint pursuant to California Code of Civil Procedure § 431.30 by denying, generally and specifically, each, every, and all of the allegations in the Unverified Complaint and each and every part of it, including each and every cause of action in it, and denies that Plaintiff has sustained or will sustain any damage in the sum referenced in it, or any other sum(s), or at all.

II.

GM further answers the Unverified Complaint on file herein and each and every purported cause of action in it by denying that Plaintiff has sustained or will sustain, any damages in any sum at all by reason of the carelessness, negligence or other faults, act, or omission by GM, its agents, servants, or employees.

AFFIRMATIVE DEFENSES TO THE COMPLAINT AND EACH ALLEGED CAUSE OF ACTION THEREOF

FIRST AFFIRMATIVE DEFENSE

(Failure to State a Cause of Action)

The Unverified Complaint, and each purported cause of action alleged in it, fails to state facts sufficient to constitute a cause of action against GM.

SECOND AFFIRMATIVE DEFENSE

(Failure to Allow a Cure)

GM is informed and believes, and therefore alleges, that Plaintiff is barred from obtaining the relief sought in the Unverified Complaint because Plaintiff has failed and refused to allow GM a reasonable opportunity to cure any alleged breach by GM.

THIRD AFFIRMATIVE DEFENSE

(Mitigation)

GM is informed and believes, and therefore alleges, that Plaintiff's alleged damages, if any, are the result, in whole or in part, of Plaintiff's failure to exercise care to reduce or mitigate damages.

FOURTH AFFIRMATIVE DEFENSE

(Contributory Negligence, Unclean Hands, Assumption of Risk)

GM is informed and believes, and therefore alleges, that Plaintiff is barred in whole or in part by Plaintiff's negligence, unclean hands, fault, assumption of risk or otherwise from any and all legal or equitable relief against GM, as requested in the Unverified Complaint or otherwise.

FIFTH AFFIRMATIVE DEFENSE

(Statutes of Limitation)

GM is informed and believes, and therefore alleges, that the Unverified Complaint, and each cause of action alleged in it, is barred by application of the statutes of limitation in California Code of Civil Procedure §§ 337(1), 337(2), 337(3), 338(1), 338(2), 338(3), 338(4), 338(7), 339(1), 339(3), 340(1), 340(2), 340(3), 342, 343, 344, 348, Commercial Code § 2725 and any other statute of limitation applicable to this action.

SIXTH AFFIRMATIVE DEFENSE

(Laches)

GM is informed and believes, and therefore alleges, that the Plaintiff waited an unreasonable length of time to complain of the alleged acts or omissions at issue in the Unverified Complaint to prejudice GM. Plaintiff is, therefore, guilty of laches and is barred from recovery.

SEVENTH AFFIRMATIVE DEFENSE

(Failure of Performance)

GM is informed and believes, and therefore alleges, that any failure to perform the obligations as described in the Unverified Complaint resulted from Plaintiff's failure to perform as required by the contract and warranty. Performance by Plaintiff of his obligations is a condition precedent to the performance of GM's obligations.

EIGHTH AFFIRMATIVE DEFENSE

(Apportionment)

Any and all injuries, if any, and damages, if any, allegedly sustained or suffered by Plaintiff were proximately caused and contributed to by the superseding, intervening acts or omissions of persons other than GM. Those persons, and each of them, were careless and negligent concerning the matters alleged in the Unverified Complaint, and their negligence and carelessness proximately contributed to the loss, injury, damage, or detriment alleged in the Unverified Complaint, with the result that the damages, if any, recoverable by Plaintiff must be diminished in proportion to the fault attributable to those other persons.

NINTH AFFIRMATIVE DEFENSE

(Misuse of Product)

Any and all injuries, if any, and damages, if any, allegedly sustained or suffered by Plaintiff were directly and proximately caused and contributed to by the misuse of and the unreasonable and improper use of GM's product. The misuse of or failure to use GM's product properly contributed to the loss, injury, damage, or detriment, if any, alleged in the Unverified Complaint, and the damages, if any, recoverable by Plaintiff must be diminished in proportion to the amount of fault attributable to that misuse or unreasonable or improper use.

TENTH AFFIRMATIVE DEFENSE

(Alteration of Product)

Any damage to the subject vehicle was caused or created by changes or alterations to the vehicle, after GM manufactured and sold the vehicle, by persons other than GM or any of its agents, servants, or employees, barring Plaintiff's recovery in this action.

ELEVENTH AFFIRMATIVE DEFENSE

(Disclaimer)

GM is informed and believes, and therefore alleges, that before and at the time of the alleged acts, omissions, and conduct of GM alleged in the Unverified Complaint, GM had expressly disclaimed, negated, and excluded all warranties of the type alleged by Plaintiff, and of any type, express or implied, whatsoever.

TWELFTH AFFIRMATIVE DEFENSE

(Lack of Causation)

No act or omission of GM was the cause in fact or the proximate cause of the alleged injuries and damages, if any, sustained by Plaintiff. GM is informed and believes, and therefore alleges, that any breach of warranty of fitness or merchantability if any, and any other breach of warranty, if any, and any breach of contractual undertakings by GM, if any, were neither the cause in fact nor the proximate cause of Plaintiff's damages. Rather, any alleged breach was only secondary, inconsequential, indirect and in no way contributed to or caused Plaintiff's alleged damages.

THIRTEENTH AFFIRMATIVE DEFENSE

(Unauthorized Use of the Product)

GM is informed and believes, and therefore alleges, that any and all damages, if any, allegedly sustained or suffered by Plaintiff was proximately caused and contributed to by Plaintiff's use of the subject vehicle for a purpose to which the subject vehicle was not intended to be used. Plaintiff knew or should have known that the use to which Plaintiff put the vehicle was not the use for which the vehicle was manufactured or intended and that the unintended use could cause damage to Plaintiff.

FOURTEENTH AFFIRMATIVE DEFENSE

(Estoppel)

GM is informed and believes, and therefore alleges, that Plaintiff is estopped from obtaining the relief sought in the Unverified Complaint by virtue of Plaintiff's acts and conduct in connection with the matters alleged in the Unverified Complaint.

FIFTEENTH AFFIRMATIVE DEFENSE

(Waiver)

GM is informed and believes and therefore alleges, that Plaintiff has waived Plaintiff's rights, if any, to obtain the relief sought in the Unverified Complaint.

SIXTEENTH AFFIRMATIVE DEFENSE

(Comparative Negligence)

GM is informed and believes, and therefore alleges, that Plaintiff's damages, if any, were the direct and proximate result of the conduct of Plaintiff or Plaintiff's agents, employees, and invitees, in that they negligently, carelessly, recklessly, knowingly, and willfully operated, maintained, serviced, directed, and otherwise controlled all operations and maintenance of Plaintiff's vehicle. Plaintiff's damages, if any, were directly and proximately caused, in whole or in part, or were contributed to or aggravated by the conduct of Plaintiff or Plaintiff's agents, employees, and invitees, when they negligently, carelessly, recklessly, knowingly, and willfully failed to repair the subject vehicle, knowing that the vehicle needed service, maintenance, or repair, but instead, proceeded to operate, maintain, navigate, direct, and otherwise make use of the vehicle or made improper and inadequate service, maintenance and repairs to it. GM is further informed and believes, and therefore alleges, that

the vehicle owner knowingly and willfully authorized these actions and knowingly and willfully assumed the known risk that these actions would cause, compound, or aggravate the known problems with the vehicle and would proximately cause damage to it.

SEVENTEENTH AFFIRMATIVE DEFENSE

(Assumption of Risk)

The risks and dangers in Plaintiff's conduct were known to Plaintiff, but Plaintiff conducted himself in such a manner as to expose himself and remain exposed to such risks and dangers and, by doing so, assumed all the risks attendant to that conduct. At the time(s), date(s), and place(s) of the events described in the Unverified Complaint, Plaintiff voluntarily assumed the risks of the activities in which Plaintiff was then and there engaged. Under the circumstances and conditions then and there existing, the resulting injuries, if any, and damages, if any, sustained by Plaintiff were proximately caused by Plaintiff's own voluntary assumption of risk.

EIGHTEENTH AFFIRMATIVE DEFENSE

(Qualified Third-Party Dispute Resolution Process)

GM maintains a qualified third-party dispute resolution process that substantially complies with California Civil Code § 1793.22. GM is informed and believes, and therefore alleges, that Plaintiff received a timely and appropriate notification, in writing, of the availability of GM's third-party resolution process. Accordingly, since Plaintiff did not avail himself of the third-party dispute resolution process before filing the Unverified Complaint, § 1794(e)(2) of the California Civil Code affirmatively bars Plaintiff from recovering treble damages (as provided under California Civil Code § 1794(e)) and Plaintiff cannot avail himself of the rebuttable presumption under California Civil Code § 1793.22(e)(1).

NINETEENTH AFFIRMATIVE DEFENSE

(Good Faith Belief in Legality of Actions)

At all times relevant to this action, GM acted in good faith and believes its actions to be legal.

TWENTIETH AFFIRMATIVE DEFENSE

(Offset for Use)

GM intends to avail itself of the reduction authorized by Civil Code § 1793.2(d)(2)(C) if GM is found to violate the Song-Beverly Consumer Warranty Act.

TWENTY-FIRST AFFIRMATIVE DEFENSE

(Civil Code § 1791.1(c) – Implied Warranty)

Each and every cause of action based on breach of implied warranty is barred by Civil Code § 1791.1(c).

TWENTY-SECOND AFFIRMATIVE DEFENSE

(Consent)

The repair process to Plaintiff's vehicle was appropriate and proper and is believed to have been done with Plaintiff's consent.

TWENTY-THIRD AFFIRMATIVE DEFENSE

(Failure to Provide Notice)

GM is informed and believes, and therefore alleges, that Plaintiff failed to provide notice to GM pursuant to Civil Code § 1794(e)(3). Plaintiff is, therefore, barred from asserting the presumptions in Civil Code § 1793.22 and from recovering civil penalties pursuant to Civil Code § 1794(e).

TWENTY-FOURTH AFFIRMATIVE DEFENSE

(Failure to State Cause of Action for Civil Penalties)

The Complaint fails to state sufficient facts to warrant the imposition of civil penalties if replacement or repurchase of the subject vehicle was not appropriate under the circumstances then known, or if GM offered to repurchase or replace the subject vehicle.

TWENTY-FIFTH AFFIRMATIVE DEFENSE

(Reservation of Rights)

GM presently has insufficient knowledge or information on which to form a belief as to whether it may have additional, as yet unstated, affirmative defenses available. GM reserves the right to assert additional affirmative defenses if discovery indicates that they would be appropriate.

WHEREFORE, GM prays:

1. That Plaintiff takes nothing by the Unverified Complaint;
2. For the cost of suit; and
3. For such other and further relief as the Court deems just and proper.

Dated: June 7, 2024

ERSKINE LAW GROUP, APC

Kyle B. Roybal, Esq.
Attorneys for Defendant
GENERAL MOTORS LLC

PROOF OF SERVICE

I am employed in the County of Orange and my business address is 1592 N. Batavia Street, Ste 1A in Orange, CA, 92867. I am over the age of 18 years and I am not a party to this action. I am readily familiar with the practices of Erskine Law Group for the collection and processing of correspondence for mailing with the United States Postal Service. Such correspondence is deposited with the United States Postal Service the same day in the ordinary course of business.

On **Friday, June 7, 2024**, I served the foregoing document(s), bearing the title(s):

GENERAL MOTORS LLC'S ANSWER TO PLAINTIFF'S UNVERIFIED COMPLAINT

on the interested parties in the action as follows:

[X] by placing [] the **original** [X] a **true copy** thereof enclosed in a sealed envelope addressed as follows:

QUILL & ARROW, LLP
e-service@quillarrowlaw.com

[] (**BY MAIL SERVICE**) I placed such envelopes for collection and to be mailed on this date following ordinary business practices.

[] **(BY PERSONAL SERVICE**) I caused to be delivered such envelope by hand to the office of the addressee.

[] (**BY FACSIMILE**) The document stated herein was transmitted by facsimile transmission and the transmission was reported as complete and without error. A transmission report was properly issued by the transmitting facsimile machine and a copy of said transmission report is attached to the original proof of service indicating the time of transmission.

[] (**BY NEXT DAY DELIVERY**) I caused to be delivered such envelope by hand to the office of the addressee.

[X] (**BY E-MAIL)** I served the above-mentioned document via electronic transmission per agreement of the parties.

[X] (**State**) I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

[] (**Federal**) I declare under penalty of perjury that I am employed by a member of the Bar of this Court, at whose direction this service is made.

Executed on **Friday, June 7, 2024**, at Orange, CA.

Signed: _____
Debra Goodenough